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Request for Information: Development of an Artificial Intelligence Action Plan

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Submitter Information

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General Comment

March 15, 2025

From:

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Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I love art. I love books and the written word. I love paint and colored pencils and digital renderings. I love songs and photographs, television shows and movies. Even clothes are an art form and I love them and the truly infinite ways art and creativity influence my life.

Unfortunately, the AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American artists, songwriters, authors, and even small businesses with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. The unique works of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without consent or compensation. They ingest the work, reassemble it, and then sell it back to the public. This is direct competition for those artists who created the work in the first place and completely cuts them out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How can people possibly make a living doing these things?

Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that they can decide when and where their work is used by AI systems.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Their work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.

Thank you for the opportunity to comment on these important issues.